

1.

CASE #	CASE NAME	HEARING NAME
CVRI2306424	TRAN vs FRIEL	MOTION TO ENFORCE SETTLEMENT

Tentative Ruling: This matter was noticed for September 29, 2026 at 8:30 a.m. in Dept. 3.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2403066	DOE vs BEAUMONT UNIFIED SCHOOL DISTRICT	MOTION TO COMPEL

Tentative Ruling:

Meet and Confer

As effective 1/1/26, CCP §2016.040 requires a meet-and-confer declaration to state facts showing a reasonable and good faith attempt, either *in person*, *by telephone*, or *by videoconference*, to resolve disputes. A good faith meet and confer attempt requires more than just an attempt to persuade the objector of the error of his or her ways, it requires counsel to talk the matter over, compare their views, consult, and deliberate. (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1294.) It requires a serious attempt by the moving party to informally resolve each issue with the responses. (*Id.* at 1293.) Arguments and debates do not constitute an earnest attempt to resolve discovery disputes. (*In re Marriage of Moore* (2024) 102 Cal.App.5th 1275, 1293.) Here, the record shows written correspondence (Baker Decl., ¶¶ 4, 11-14), but Plaintiffs do not dispute that counsel held no *in-person*, *telephone*, or *videoconference* meeting before filing the motion. Since Plaintiffs did not satisfy the present version of CCP § 2016.040, the court continues the hearing for counsel to make at least one attempt to reach defense counsel by phone. The hearing is continued to September 28, 2026 at 8:30 am in D-3. Plaintiff is to file a supplemental meet and confer declaration 5 court days in advance of the hearing. Defendant is advised that counsel's correspondence is not a judicial admission sufficing to remove an issue from dispute..

3.

CASE #	CASE NAME	HEARING NAME
CVRI2407289	DG MARKHAM PROPERTY OWNER, L.P., vs SHIPJOY, LLC	MOTION TO COMPEL

Tentative Ruling:

This action arises from the parties' dispute regarding a commercial lease for property located at 212 W. Markham Street, Perris, California (the "Property"). On January 31, 2022, Plaintiff DG Markham Property Owner, L.P. ("Plaintiff") and